

advancement (*c*); but even here the right of the child is now indisputably established (*d*). However, the advancement cannot be *more extensive than the legal estate in the child* (*e*); and therefore the *stranger, quatenus* the legal estate vested in *him*, must hold upon trust for the father (*f*).

4. **Purchase of copyholds granted for lives successive.** — It is the custom, in many manors, to make grants for lives *successive*. Should a father pay a fine upon a grant to himself and his two sons, shall this be held an advancement or a trust? Upon the difficulty of this case, Lord Chief Baron Eyre remarked, that “when the lessees where to take *successive*, the father could not take the whole in his own name, but *must* insert other names in the lease, and that there might be many prudential reasons for putting in the life of a child as trustee for him, in preference to any other person” (*g*). And in accordance with this reasoning was decided the case of *Dickinson v. Shaw* (*h*); but in *Dyer v. Dyer* (*i*) the notion was overruled as savouring too much of refinement; and so at the present day it must be considered as settled (*j*).

* 5. **Child already provided for.** — It may happen, [*173] that the child in whose name the purchase is taken may have been *already provided for*, a circumstance of very considerable weight in rebutting the presumption of further advancement. “The rule of equity,” said Lord Chief Baron Eyre, “as recognised in other cases, is, that the father is the only judge on the question of a son’s provision, and therefore the distinction of the son being provided for or not is not very solidly taken” (*a*). However, the distinction has been

(*c*) See *Hayes v. Kingdome*, 1 Vern. 34.

(*d*) *Lamplugh v. Lamplugh*, 1 P. W. 111; *Kingdome v. Bridges*, 2 Vern. 67. [And see *Re Eykyn's Trusts*, 6 Ch. D. 115.]

(*e*) See *Rumboll v. Rumboll*, 1 Eden, 17.

(*f*) See *Kingdome v. Bridges*, 2 Vern. 67; *Lamplugh v. Lamplugh*, 1 P. W. 112.

(*g*) *Dyer v. Dyer*, 2 Cox, 95; S. C. 1 Watk. Cop. 221.

(*h*) Cited 2 Cox, 95; 1 Watk. Cop. 221.

(*i*) 2 Cox, 92; 1 Watk. Cop. 216.

(*j*) *Swift v. Davis*, 8 East, 354, note (*a*); *Fearne's P. W.* 327; *Skeats v. Skeats*, 2 Y. & C. C. C. 9; *Jeans v. Cooke*, 24 Beav. 513.

(*a*) *Dyer v. Dyer*, 2 Cox, 94; S. C. 1 Watk. Cop. 220.